**Forum:** **Human Rights Council (HRC)**

**Issue:** Ensuring Refugee Rights and the Responsibility of Host Countries

**Student Officer:** Lucas Yeo, Siwoo Seok, Jarius Joseph Tanduyan

**Position:** President Chair, Deputy Chair, Deputy Chair

## Introduction

The protection of refugee rights remains one of the most pressing issues in the current world. As of the end of June 2025, the most recent reporting period, 117.3 million people had been forced to flee their homes globally due to persecution, conflict, violence, human rights violations or events seriously disturbing public order. Among them were nearly 42.5 million refugees, revealing the urgent need to address the escalating crisis of refugee rights. (UNHCR) As the number of refugees are currently rising, the strain on host countries are also increasing.

One of the world's largest and fastest growing refugee crises includes the Rohingyas, a group of Muslim ethnic minority groups from Myanmar, whom the United Nations has described as being "the most persecuted minority in the world." (unrefugees.org) This forced many to make dangerous journeys by land and sea to seek refuge and protection somewhere else their home country. This has created a complex humanitarian crisis; many refugees are entirely dependent on aid, with limited access to education and livelihoods.

This committee is therefore confronted with the urgent challenge of safeguarding the human rights of this vulnerable group while delivering stability and support to the country and region.

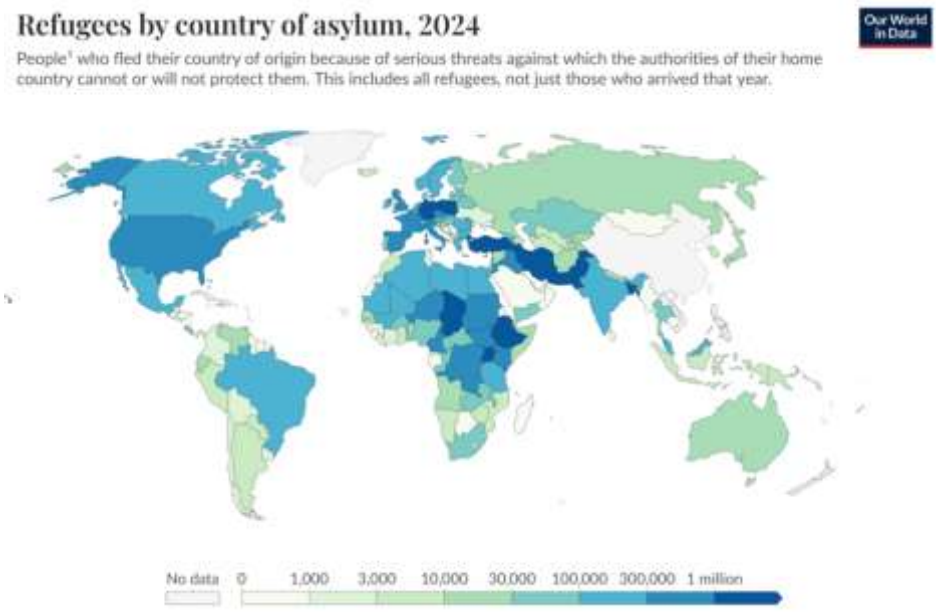


**Figure 1.** Refugees by Country of Asylum, 2024 *("Refugee Population by Country or Territory of Asylum")*

## Definition of Key Terms

**Refugees**

Article 1 of the 1951 Convention defines a refugee as someone who "owing to well-founded fear of being persecuted for reasons of race, religion, nationality, membership of a particular social group or political opinion, is outside the country of [their] nationality and is unable or, owing to such fear, is unwilling to avail [themself] of the protection of that country; or who, not having a nationality and being outside the country of [their] former habitual residence, is unable or, owing to such fear, is unwilling to return to it." (UNHCR)

**Repatriate**

To send someone back to their own country or to return to one's own country.

**Host Country**

A country that receives and provides temporary or permanent protection to refugees

**Internally Displaced People (IDPs)**

According to the Guiding Principles on Internal Displacement, internally displaced persons (also known as "IDPs") are "persons or groups of persons who have been forced or obliged to flee or to leave their homes or places of habitual residence, in particular as a result of or in order to avoid the effects of armed conflict, situations of generalized violence, violations of human rights or natural or human-made disasters, and who have not crossed an internationally recognized border."

**Asylum Seeker**

An asylum seeker is a person who has left their country and is seeking protection from persecution and serious human rights violations in another country, but who hasn't yet been legally recognized as a refugee and is waiting to receive a decision on their asylum claim.

# Background

## History of Refugee Protection

The modern international refugee protection system came about after World War II, when unexpected amounts of displacement showed that this issue needed international action. The UN High Commissioner for Refugees was established in 1950 to protect and assist refugee populations. This marked the beginning of a structured and global framework for addressing these patterns of migration.

When the 1951 Refugee Convention was introduced, the framework was further solidified, detailing who qualifies as a refugee and their rights. One of the most important concepts in the convention is non-refoulement, which stops states from returning individuals to countries where they would be subject to persecution or serious harm (UNHCR). The 1967 Protocol expanded the Convention's ideas beyond Europe, as the issue of refugees is a global issue.

However, even though these frameworks provide a foundation to protect refugees, the implementation of said frameworks and policies vary significantly in different nations. This shows a big issue in refugee governance, which is the gap between international obligations and regional enforcements.

## Causes of Forced Migration

### *War and Conflict*

Conflict is one of the leading causes of forced displacement around the world. Wars in nations such as Syria, Ukraine, and Sudan have forced millions of people to flee from their homes, often without warning and leaving them with little to no resources. These conflicts commonly destroy infrastructure and create long term instability, which makes returning extremely difficult or impossible for refugees. Often, these refugees spend years or decades without the chance to return to their home country, which makes this issue a long term development challenge (UNHCR)

### *Persecution and Human Rights Violations*

Many individuals seek asylum because of persecution based on factors such their race, religion, nationality, and political views. This is a common issue in many regions, where systemic discrimination can lead to mass displacement. In these cases, human rights are often violated, which highlights the deeper political and social inequalities within nations.

### *Climate and Environment*

The degradation of the environment and climate change increasingly have an impact on displacement. Rising sea levels, droughts and extreme weather conditions force more and more people to relocate from their homes. However, individuals who are displaced because of environmental factors aren't always recognized under current definitions of refugees. This challenge highlights the limitations of current frameworks, which were created in a different historical context and may not be applicable to the issues of today (Amnesty International).

### Host Country Responsibility & Burden Sharing

Host countries have a critical role in protecting and assisting refugees. Under international law, the countries are obliged to provide the refugees access to basic rights such as shelter, healthcare, and education. However, the reality is that the distribution of this responsibility is very uneven. According to the United Nations High Commissioner for Refugees, most of the refugees in the world are hosted by developing countries, which often don't have the sufficient resources to support these large refugee populations (UNHCR).

Countries such as Türkiye and Bangladesh are home to millions of refugees, which strains infrastructures and public services within the nation. This leads to tension between refugees and the people of the host nations, especially when resources are scarce.

### Challenges faced by Refugees

Refugees often encounter many challenges during their displacement and during their arrival into host countries. Legal issues often restrict their ability to work, get access to education, or fully integrate into the society. In many cases, refugees are confined to camps where living conditions are poor, with issues like overcrowding and limited resources.

Additionally, the legal processes for asylum can be very long and complex, especially in developed countries. Long delays in processing often leave individuals in uncertainty and limits their ability to begin building a life in the host nation. Issues such as racism and discrimination also restrict refugee's abilities to integrate, as they may be seen as threats to communities or economies (Amnesty International)

### Global Trends

The magnitude of forced displacement has soared in recent years, with over 100 million people forced into migration around the world (UNHCR). This increase is a reflection of ongoing conflicts, political instability, and climate change. At the same time, the international response had become less effective. Nationalist and anti-immigration sentiment in many countries have led to stricter border controls and less willingness among countries to accept refugees. Adding on to this, the extendedness of many refugee situations means that displacement is not a temporary issue but a long term international challenge. Addressing this issue needs immediate humanitarian assistance as well as sustainable solutions to issues such as integration and conflicts.

## Major Parties Involved

### United Nations High Commissioner for Refugees (UNHCR)

UNHCR, the UN Refugee Agency, is a global organization dedicated to saving lives, protecting rights, and building a better future for people forced to flee their homes because of conflict and persecution. (UNHCR) This is the primary international organization that leads international actions to protect refugees, forcibly displaced communities and stateless people.

### Republic of Türkiye

Türkiye is one of the largest refugee-hosting countries worldwide, as the number of people forcibly displaced across the world due to conflict, violence and persecution hit record levels. Türkiye currently hosts some 3.2 million registered Syrian refugees along with close to 222,000 persons of concern from other nationalities. The Republic of Türkiye is a party to the 1951 Refugee Convention and 1967 Protocol, maintaining the geographical limitation to the 1951 Convention, thus retaining resettlement to a third country as the most preferred durable solution for refugees arrived due to the events occurred outside of Europe. (UNHCR)

### Germany

Germany's significant role in the global refugee response grew in 2015 when it opened its borders to over a million refugees fleeing war and persecution, particularly from Syria. Since then, arrivals from Ukraine, Afghanistan, Iraq, and various African nations have added pressure. Germany continues to face housing shortages, bureaucratic delays in asylum processing, and political debates around migration policy, while civil society remains committed to supporting social inclusion. (Omnia Business Systems)

### Bangladesh

More than one million Rohingya refugees live in the largest refugee camp in the world in Cox's Bazar, Bangladesh. They are an ethnic minority who have been denied citizenship in Myanmar, making them the world's largest stateless population. Historically, Bangladesh has opposed the permanent settlement of refugees and supports the return of the Rohingya refugees to Myanmar. They have shown unwillingness to provide extensive financial support, political support, or materials for refugees.

### European Union (EU)

They play a major role in shaping regional asylum policies and funding refugee support programs, though member states often differ in their approaches to responsibility sharing for host countries of refugees.

## Previous Attempts to Resolve the Issue

- The Convention relating to the Status of Refugees (28 July 1951, 189 U.N.T.S. 150). This document is the basis for extending legal rights to refugees. It contains defining terms, establishing the rights of refugees, and compelling states to uphold the principle of non-refoulement.
- The Protocol relating to the Status of Refugees (31 January 1967, 606 U.N.T.S. 267). This protocol amended the 1951 Convention by eliminating restrictions based upon geographic and temporal limits.
- Multi-Stakeholder Pledge to Prevent Trafficking in Persons Among Asylum Seekers and Refugees (14 December 2023). This social contract was launched at the Global Refugee Forum by the UN Special Rapporteur on trafficking, with the goal of calling on states to maintain access to asylum through legal protections from refoulement to prevent re-trafficking within displaced populations.

## Possible Solutions

Equitable distribution of responsibilities and burdens.

Delegates could suggest establishing a mechanism to relieve pressure from frontline countries. Countries that offer assistance may do so through a "solidarity framework," providing relocation, financial support, or technical assistance. Possible clauses may include establishing a UN-administered Fund to support host communities (schools, clinics, water infrastructure) to help reduce tensions between the local population and refugees.

Broadening the Scope of Durable Solutions:
Delegates may explore ideas such as increased availability of third-country resettlement options, family reunification opportunities, and alternative routes to a durable solution (e.g., humanitarian student/work visas). Proposed potential clauses could include: developing and implementing voluntary repatriation agreements that are dignified and safe; providing reintegration support (housing and/or livelihood assistance) to enable returnees to effectively reintegrate into their communities; and ensuring that all returns are voluntary, without coercion.

Closing Legal and Procedural Gaps:
Delegates may recommend developing processes to streamline the asylum application process, thereby expediting applications and reducing the backlog of asylum claims that currently leave asylum seekers in legal uncertainty, including providing legal assistance (at no cost) to persons seeking asylum, as well as ensuring they can receive a written notification confirming receipt of their application and, if applicable, how to appeal the decision. Other proposed potential clauses could include extending protection to persons displaced due to climate change and/or environmental emergencies (i.e., not adequately defined as refugees under the existing definition of refugees).

## Bibliography

UNHCR. "Figures at a Glance | UNHCR." *UNHCR*, 2024, www.unhcr.org/about-unhcr/overview/figures-glance.

Carter, Ethan. "Understanding the Global Refugee Crisis - Key Facts and Figures." *Peace Corps Journal*, 29 Dec. 2024, peacecorpsjournals.com/understanding-the-global-refugee-crisis-key-facts-and-figures/.

United Nations. "OHCHR | about Internally Displaced Persons." *OHCHR*, United Nations, 2023, www.ohchr.org/en/special-procedures/sr-internally-displaced-persons/about-internally-displaced-persons.

**UNHCR. "About UNHCR." *UNHCR*, 2024, www.unhcr.org/about-unhcr.**

UNHCR. "Refugees and Asylum Seekers in Türkiye | UNHCR Turkey." *UNHCR Turkey*, 2014, www.unhcr.org/tr/en/kime-yardim-ediyoruz/refugees-and-asylum-seekers-tuerkiye.

Amnesty International. "Refugees, Asylum-Seekers and Migrants." *Amnesty International*, 2024, www.amnesty.org/en/what-we-do/refugees-asylum-seekers-and-migrants/.

Omnia Business Systems. "Germany | Global Refugee Solutions." *Globalrefugeesolutions.org*, 2023, globalrefugeesolutions.org/Germany.

European Parliament. "The EU Response to Migration and Asylum | Topics | European Parliament." *Www.europarl.europa.eu*, 30 June 2017, www.europarl.europa.eu/topics/en/article/20170629STO78629/the-eu-response-to-migration-and-asylum.

Amnesty International. "Refugees, Asylum-Seekers and Migrants." *Amnesty International*, 2024, www.amnesty.org/en/what-we-do/refugees-asylum-seekers-and-migrants/.

Global Refugee Forum: UN Expert Says States Must Commit to Urgent Action to Prevent Trafficking among Asylum Seekers and Refugees." *OHCHR*, 2023, www.ohchr.org/en/press-releases/2023/12/global-refugee-forum-un-expert-says-states-must-commit-urgent-action-prevent __cf_chl_rt_tk=IfhxJf1fZ2x0gvGKekoS3wvtNkq.VxS87JozVy06n3w-1777460460-1.0.1.1-Bv0txqLY73Pa64TU7ZtlDUYg2Kl0i_5xi.h4N7947So.

"Convention and Protocol Relating to the Status of Refugees." *https://www.unhcr.org/sites/default/files/2025-02/1951-refugee-convention-1967-protocol.pdf* , United Nations High Commissioner for Refugees, www.unhcr.org/sites/default/files/2025-02/1951-refugee-convention-1967-protocol.pdf.

"THE REFUGEE CONVENTION, 1951." *https://www.unhcr.org/sites/default/files/legacy-pdf/4ca34be29.pdf?__cf_chl_rt_tk=F7HBdt_T3.7A_du6p3dm1LnfTOS8R.aitA3L0FIjgx4-1777460311-1.0.1.1-l1xFkoX7B4cL0dUKEuKZGGlcC8c.HWt5elyO6DSJNaQ*, www.unhcr.org/sites/default/files/legacy-pdf/4ca34be29.pdf ?__cf_chl_rt_tk=F7HBdt_T3.7A_du6p3dm1LnfTOS8R.aitA3L0FIjgx4-1777460311-1.0.1.1-l1xFkoX7B4cL0dUKEuKZGGlcC8c.HWt5elyO6DSJNaQ.